



CHAPTER xviii.

An Act to amend the Port of London Act 1908 and to extend the powers of raising money under such Act to confer further powers on the Port of London Authority and for other purposes. A.D. 1914.
[8th July 1914.]

WHEREAS by the Port of London Act 1908 the Port of London Authority (hereinafter in this Act called "the Port Authority") were established for the purpose of administering preserving and improving the port of London and otherwise for the purposes of the said Act and by such Act the undertakings and powers of the London and India Docks Company the Surrey Commercial Dock Company and the Millwall Dock Company were transferred to and vested in the Port Authority and there was also transferred to such Authority all the rights powers and duties of the Conservators of the River Thames in respect of the River Thames below the landward limit of the port of London :

And whereas various powers were conferred on the Port Authority in reference to the raising of moneys by the Port Authority for the purpose of carrying out the provisions of the Act of 1908 and otherwise for the purpose of carrying on their undertaking and fulfilling their statutory duties and certain of such powers were exerciseable subject to the consent of the Board of Trade and certain supervisory powers were given to the Board of Trade in reference to the method of raising moneys by the Port Authority and such powers were in certain respects limited and restricted under the provisions of such Act :

And whereas by section 26 of the Port of London Act 1912 the purposes for which the Port Authority were authorised to borrow money under the Act of 1908 were extended so as to

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A.D. 1914. — include the exercise of the powers conferred on them by that Act and referred to in such section :

And whereas doubts have arisen as to the limits and restrictions within which the powers of borrowing by the Port Authority may be exercised and it is expedient that such doubts should be removed and that further powers be conferred on the Port Authority in reference to the borrowing of moneys for the purposes of their undertaking and for exercising their powers and carrying out their statutory duties imposed upon them :

And whereas it is expedient that the Port Authority should be empowered to borrow money temporarily by means of bills or bonds or otherwise and that the further powers as in this Act contained should be conferred on the Port Authority :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the Port of London (Amendment) Act 1914.

Interpreta- 2. In this Act unless the subject or context otherwise
tion. requires—

“The Port Authority” means the Port of London Authority established by the Port of London Act 1908 ;

“The Act of 1908” means the Port of London Act 1908 ;

Expressions to which meanings are assigned by the Act of 1908 shall have the same respective meanings in this Act.

Amendment of section 18 of Act of 1908. 3.—(a) Subsection (1) of section 18 of the Act of 1908 shall be read and have effect as if the following paragraph had been inserted therein immediately after paragraph (f) (viz.) :—

“(g) For the purposes of erection of offices for the Port Authority and the acquisition of land therefor and for the purposes of enabling the Port Authority to exercise the powers conferred on them by sections 5 21 and 23 of the Port of London Act 1912.”

(b) Subsection (2) of section 18 of the Act of 1908 is hereby repealed and in lieu thereof the following subsection is hereby enacted and the Act of 1908 shall be read and have effect accordingly (viz.):— A.D. 1914.
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“(2) Money borrowed under this section may be borrowed by the issue of port stock or in such other manner as the Board of Trade may by order direct and such money and the interest thereon shall be charged on the port fund and all the revenues of the Port Authority.”

(c) Subsection (3) of section 18 of the Act of 1908 shall be read and have effect as if the following paragraph had been inserted in such subsection immediately after paragraph (d) (viz.):—

“(e) the erection of offices for the Port Authority and the acquisition of land therefor and for the purposes of enabling the Port Authority to exercise the powers conferred on them by sections 5 21 and 23 of the Port of London Act 1912.”

4. The Port Authority may obtain advances of such sums of money as they may require for meeting their obligations and carrying on their business provided that the total amount advanced at any one time and outstanding shall not exceed one million pounds or such larger sum not exceeding two million pounds as the Board of Trade may sanction and the sums so advanced shall be charged on the port fund and all the revenues of the Port Authority. Power to obtain advances for carrying on business of Port Authority.

The provisions of the Act of 1908 as to borrowing and the repayment of moneys shall not apply to advances under this section.

5.—(1) For the purposes of raising any moneys which the Port Authority are authorised to borrow or for the purpose of securing any advances to be made to the Port Authority under the section of this Act of which the marginal note is “Power to obtain advances for carrying on business of Port Authority” the Port Authority may instead of or in temporary substitution for the powers which they may possess of borrowing money under the provisions of section 18 of the Act of 1908 as Power to issue bills and bonds.

A.D. 1914. — amended by this Act by means of the issue of port stock or otherwise—

- (A) Issue and renew bills subject to and in accordance with the regulations contained in the First Schedule to this Act;
- (B) Issue and renew bonds subject to and in accordance with the regulations contained in the Second Schedule to this Act;
- (c) Receive money on deposit at such rate of interest and repayable on such date not exceeding ten years from the date of deposit as the Port Authority may from time to time determine and from time to time renew such deposits.

(2) Bills or bonds may be issued shortly before any other bills or bonds fall due in order to pay off those bills or bonds notwithstanding that the powers of borrowing conferred upon the Port Authority by this Act would thereby be temporarily exceeded.

(3) The total amount of any such bills bonds or moneys received on deposit outstanding at any one time shall not in the aggregate exceed the sum of three million pounds except by the amount payable on bills or bonds issued shortly before any other bills or bonds fall due in order to pay off those bills or bonds.

(4) Each bill shall be for the amount directed by the Port Authority not being less than one thousand pounds.

(5) Bills or bonds or moneys received on deposit at interest under the provisions of this section shall be charged on the port fund and all the revenues of the Port Authority and for the purposes of subsection (c) of the proviso to section 21 of the Act of 1908 the moneys raised or secured thereby shall be deemed to be a temporary loan within the meaning of such subsection.

(6) The Port Authority may enter into any such arrangement as they may think proper with any banker firm of bankers or banking company for carrying into effect the provisions of this Act with respect to the issue of bills or bonds and to the payment of the principal sums named therein and to all matters relating thereto and for the proper remuneration for the services rendered with reference thereto.

(7) For the repayment of money raised by bills or bonds or received on deposit the Port Authority may raise money by the issue of further bills or bonds or by the receipt of further moneys on deposit or by any other method or methods by which the Port Authority are authorised to raise money. A.D. 1914.

6. The Port Authority shall not be bound to see to the execution of any trust whether express implied or constructive to which any bond or the principal moneys or interest thereby secured may be subject and the receipt of the person or persons in whose names any bond shall stand in the books of the Port Authority shall from time to time be a sufficient discharge to the Port Authority for any moneys payable in respect of such bond notwithstanding any trusts to which the same or the money thereby secured may then be subject and whether the Port Authority shall or shall not have had notice of such trusts and the Port Authority shall not be bound to see to the application of the money paid upon such receipt. Port Authority not bound to recognise any trust.

7. Notwithstanding anything contained in any Act relating to the Port Authority or their undertaking it shall not be necessary for any person or corporation who may lend or pay any money to the Port Authority on any bond to enquire into the application thereof. Persons not bound to enquire as to application of money borrowed.

8. The aggregate amount of moneys borrowed and outstanding at any one time whether raised by means of the issue of port stock or by any other means under the Act of 1908 or this Act shall not unless Parliament otherwise determine exceed by more than ten million pounds at any one time the amount of port stock issued as the consideration for or in connection with the transfer of the undertakings of the dock companies except by the amount payable on bills or bonds issued shortly before any other bills or bonds fall due in order to pay off such bills or bonds and subsection (5) of section 19 of the Act of 1908 is hereby repealed. Limiting amount of moneys to be borrowed.

9. Subject to the provisions of this Act the provisions contained in section 20 of the Act of 1908 relating to the creation of sinking or redemption funds shall apply to the moneys borrowed under the Act of 1908 as amended by this Act or under this Act and separate funds shall be established for the redemption of each class of port stock issued under the powers of the Act of 1908 or this Act. As to sinking fund.

A.D. 1914. **10.** The Port Authority may during the period of construction of any work which the Port Authority are authorised to construct and from which revenue may after its completion be derived charge to capital as part of the cost of construction of any such work the interest at such rate not exceeding four per centum per annum on any money raised to defray the expenses of construction of any such work and the acquisition of lands for the purpose for such period not exceeding ten years from the commencement of the construction of any such work as the Port Authority may determine.

Interest on
certain
moneys to be
charged to
capital.

11. All the costs charges and expenses preliminary to and of and incidental to the preparation applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Port Authority.

Costs of Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1914.

THE FIRST SCHEDULE.

1. Bills issued by the Port Authority shall be called "Port of London bills."

2. A Port of London bill shall be in the form prescribed by the Port Authority and may be in the form contained in Part I. of the Third Schedule and shall provide for the payment of the sum named therein in the manner and at the date therein mentioned so that the date be not less than three nor more than twelve months from the date of the bill.

3. Such bills may be offered for purchase by tender or sold in such manner and on such conditions and after public advertisement in such manner as the Port Authority may determine.

4. The bills shall be issued under the authority of a resolution of the Port Authority.

5. Each bill shall bear the common seal of the Port Authority and the signature of the secretary and of the registrar of the Port Authority.

6. A register of the bills issued or renewed by the Port Authority shall be kept by the registrar of the Port Authority or such other person as may be appointed by the Port Authority and such register shall show the amount of each bill the principal money raised by such bill the statutory borrowing power in respect of which the bill is issued the date of issue the date when the same falls due and the date of payment thereof Such register shall at all reasonable times be open to inspection without payment of any fee by any creditor of the Port Authority.

7. A Port of London bill shall entitle the holder to payment at maturity of the sum expressed in such bill to be payable and shall be charged on the port fund and all the revenues of the Port Authority.

8. The Port Authority may by regulations provide—

(a) For regulating the preparation and the mode of issue payment and cancellation of bills;

(b) For regulating the issue of a new bill in lieu of one lost defaced or destroyed;

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- (c) For preventing by the use of counterfoils or of a special description of paper or otherwise of fraud in relation to bills ;
- (d) For a proper discharge to be given upon the payment of a bill.

THE SECOND SCHEDULE.

1. Bonds issued by the Port Authority shall be called "Port of London bonds."

2. Port of London bonds with or without coupons attached thereto may be according to the forms contained in Parts II. and III. of the Third Schedule to this Act or in such other form as the Port Authority may from time to time deem expedient and may provide that the money thereby secured shall be paid to the bearer or to the registered holder thereof.

3. Port of London bonds shall be issued under the common seal of the Port Authority.

4. The principal money secured by a Port of London bond shall be repayable at such date being not less than two nor more than ten years from the date of the bond.

5. Where bonds are issued to bearer with coupons for interest attached such interest shall be payable half-yearly at the dates and at the place specified in such coupons.

6. In the case of bonds issued to a registered holder or holders thereof—

- (a) The interest thereon shall be paid half-yearly on the dates to be specified in the bonds ;
- (b) Where more persons than one are registered as joint holders of a bond any interest may be well paid to any one of them but in the ordinary course and apart from any special direction by all of such registered holders interest shall be paid to that one of them whose name stands first on the register in respect of such bond ;
- (c) Interest shall be paid by means of warrants sent through the post to the registered holders of bonds at their registered addresses or in the case of joint registered holders to the registered address of that one of them whose name stands first on the register in respect of the bonds in question Provided that the registered holder or registered holders (if

more than one) may by writing under his or their hands direct that the interest on his or their bond or bonds shall be sent to some other address and thereupon the warrant shall be sent accordingly; A.D. 1914.

- (d) The posting by the registrar or other officer of the Port Authority of a warrant or cheque for interest in a prepaid letter directed to such address as heretofore mentioned shall be a good discharge to the Port Authority for such interest;
- (e) Every warrant so sent by post shall be deemed to be a cheque and the Port Authority and registrar shall in relation thereto be deemed to be bankers within the Bills of Exchange Act 1882;
- (f) Where two or more registered holders of a bond have given direction as to the payment of interest thereon and one of them becomes of unsound mind such direction shall not thereby become void.

7. Unpaid interest on a Port of London bond shall not under any circumstances bear interest against the Port Authority.

8. The minimum amount of principal money secured by any one bond shall be £20.

9. A Port of London bond shall entitle the holder to payment at maturity of the sum secured by such bond together with the interest thereon and shall be charged on the port fund and all the revenues of the Port Authority.

10. Whenever the holder of a bond issued to a registered holder shall die the executors and administrators of such deceased holder shall not become entitled to such bond or to the principal or interest secured thereby until in the case of the death of such holder the probate of his will or if he dies intestate letters of administration shall have been produced to the registrar of the Port Authority and a memorandum thereof shall have been entered in the proper register of transfers and the registrar shall endorse on each such bond and also on such probate or letters of administration a memorandum or note in writing signed by him specifying the date and purport of the facts entered in the register and for every entry in the register of transfers so required including the necessary endorsements the registrar may demand a fee of not exceeding 2s. 6d. for each bond.

11. Every transfer of a registered bond shall (except when transferred by will or by operation of law) be by deed duly stamped wherein the consideration for the same shall be fully and truly stated Provided always that erroneous statement of such consideration shall not vitiate the transfer or affect the same so far as the Port Authority are concerned.

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12. No transfer of a registered bond shall be deemed complete nor shall the transferee of any such bond be entitled to receive the moneys payable under or by virtue of such bond or any interest in respect thereof until the transfer deed accompanied by the bond shall have been produced to the registrar of the Port Authority for registration and such transfer deed shall be duly registered by the registrar who shall endorse on every such bond thereby transferred a memorandum or note in writing signed by him specifying the fact of such transfer and the date thereof and of such transfer having been registered.

13. The Port Authority shall cause a notice to be written or printed on some conspicuous part of every bond issued by them to a registered holder that every transfer of such bond is required to be registered in manner aforesaid and also that no transfer of any such bond will be recognised unless the deed of transfer shall be delivered up to the Port Authority to be retained by them.

THE THIRD SCHEDULE.

PART I.

(FORM OF BILL.)

PORT OF LONDON BILL.

Pursuant to Port of London (Amendment) Act 1914.

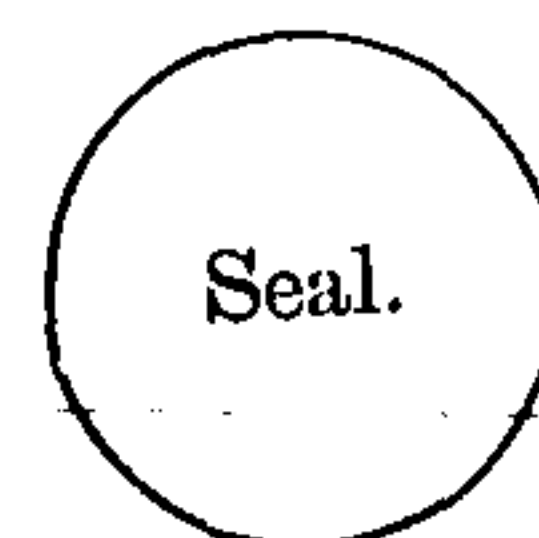
London the _____ day of
19 .

This Port of London bill entitles*

or order to payment of £

at the _____ out of the port fund of the
Port of London Authority on the _____ day of
19 .

Issued under the common seal of the Port of London Authority.



Secretary.

£

Registrar.

* If this blank be not filled in the bill will be paid to bearer.

(FORM OF REGISTERED BOND.)

PORT OF LONDON BOND.

No.		No.	
	PER CENT.		BOND
	Due		19
£		£	

Issued under the powers of the Port of London
(Amendment) Act 1914 and secured upon the port fund
and all the revenues of the Port of London Authority.

This bond entitles
of to the principal sum
of £ sterling on presentation at
on the day of
19 and in the meantime to payment of interest thereon at the rate
of £ per cent. per annum to be remitted by warrant half-
yearly on the day of and the
day of in each year up to the
date of maturity free from deduction except in respect of income tax.

Dated in London the day of 19 ..

This bond is one of a series of bonds amounting to £
numbered as follows:—

Nos.	to	£	each.
Nos.	to	£	each.
Nos.	to	£	each.

Issued under the common seal of the Port of London Authority.



Secretary.

NOTE.—Under the Port of London (Amendment) Act 1914 no person
claiming under any transfer of this bond will be entitled to receive
any principal money thereby assigned or the interest thereof until such
transfer shall have been first produced to for
registration as provided by the said Act and no transfer of this bond
will be recognised unless the transfer shall have been delivered up to
to be retained by them Notice will
not be taken of any trust to which this bond or the money thereby

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A.D. 1914. secured is or may become subject and all transfers thereof should
 — therefore be absolute and not made on any trust and must be made
 by a separate instrument.

PART III.

(FORM OF BEARER BOND.)

PORT OF LONDON BOND.

No.	No.
PER CENT.	BOND
Due	19 .
£ .	£ .

Issued under the powers of the Port of London
 (Amendment) Act 1914 and secured upon the port fund
 and all the revenues of the Port of London Authority.

TRANSFERABLE BY DELIVERY.

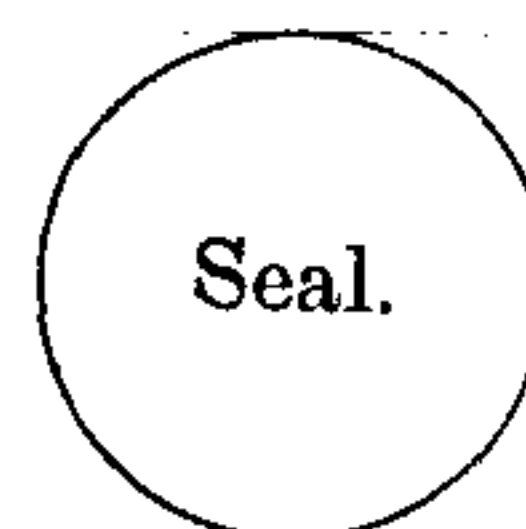
This bond entitles the bearer to the principal sum of £
 sterling on presentation at on the
 day of 19 .
 Interest thereon at the rate of £ per cent. per annum
 being payable at on the
 day of and the day of
 in each year up to the date of maturity coupons
 for which are annexed.

Dated in London the day of 19 .

This bond is one of a series of bonds amounting to £
 numbered as follows:—

Nos.	to	£	each.
Nos.	to	£	each.
Nos.	to	£	each.

Issued under the common seal of the Port of London Authority.



Secretary.

FORM OF COUPON.

A.D. 1914.
—

PORT OF LONDON AUTHORITY.	
per cent. bond	No.
coupon for six months interest	
due 19 on bond	Due
for £ No.	
Payable at the	19 .
£ (amount of interest).	£ .
(Payable less Income Tax)	

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